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Israel, the Occupied West Bank & Gaza Strip, and Palestinian Authority Territories

Human Rights Developments

Israel and the Occupied West Bank and Gaza Strip

A new government led by Ehud Barak took office on July 6 after elections to the Knesset and for the prime minister on May 17. New ministers promised to address human rights issues in areas under Israeli control including torture, prolonged administrative detention and hostage-taking, house demolitions, Jerusalem residency revocations, and discrimination against Palestinian citizens of Israel, but with limited progress to date. The High Court of Justice ruled many established interrogation practices illegal, though it did not decisively prohibit torture in all circumstances.

Widespread and systematic discrimination against ethnic and religious minorities and against women on issues such as personal status, housing, and employment continued to be a serious problem. In May the Ministry of Internal Security reported that there were more than 200,000 battered women in Israel—one in seven.

Despite some encouraging rulings on issues affecting non-Orthodox segments of the Jewish community, the courts overall were reluctant to challenge discriminatory laws and practices. For example, in its November 26, 1998 ruling the High Court of Justice acknowledged that "there is no equality for Arab religious communities in budget allocations of the Ministry of Religious Affairs," but declined to rule on whether Israeli law safeguarded the right to equality. In 1998 the ministry had allotted 1.86 percent of its budget to the combined Muslim, Christian, and Druze communities, although they comprised close to 20 percent of the population. The Legal Center for Minority Rights in Israel (Adalah) had asked the court to declare provisions of the Knesset Budget Law invalid based on the principle of equality, and to allocate resources according to the religious communities' percentage of the total population. The court found the requested remedy was too general because it did not provide a detailed and independent assessment of the communities' needs, and said the petitioners had not proved substantive inequality existed.

Labor conditions for foreign and Palestinian workers remained poor. Weak laws and poor enforcement left workers with few protections against exploitation by employers and labor contractors. On July 19 Thailand's ambassador threatened to stop the flow of Thai workers to Israeli farms if they were not paid the minimum wage. He estimated that approximately 17,000 Thais working in agriculture were owed \$30 million because of underpayments. In July the High Court ordered the Ministry of Interior to bring foreigners awaiting deportation before a judge within fourteen days, but as of early October the ruling had not been implemented. The ruling was intended to prevent the prolonged detention without judicial review of migrant workers awaiting deportation.

Minister of Interior Natan Sharansky announced on October 17 that he had ended the enforcement of the so-called "center of life" policy, which revoked permanent residency permits of Palestinian residents of East Jerusalem who were unable to produce the many documents needed to prove that their "center of life" was within Jerusalem municipal boundaries. In September the Interior Ministry revised upwards its count of the Palestinians whose residency rights had been revoked under the policy to 2,721 for the period January 1996 through April 1999. The Bethlehem-based Badil Resource

Center estimated that by including family members who also lost their residency rights due to the revocations, the total number of Palestinians affected was 10,884 for this period.

In contrast, the High Court met on April 22 to hear a petition challenging the revocations, and set a deadline of August for the petitioners and the State Attorney to submit additional information and prepare a joint report outlining their positions. The government delayed submitting its report, and as of mid-October the court had not acted on a petition for a temporary injunction against further revocations of residency rights.

Following its November 20, 1998 partial redeployment under the terms of the Wye River Memorandum, Israel exercised full or partial control over approximately 90 percent of the West Bank and 40 percent of the Gaza Strip, while the Palestinian Authority (P.A.) had full control over the rest. Under the terms of the Sharm al-Sheikh Memorandum signed on September 4, further redeployments scheduled for November 1999 and January 2000 would raise the portion of the West Bank under full P.A. control to approximately 18 percent. Other provisions of the Memorandum included a phased release of 350 of the Palestinian prisoners held by Israel, planned "safe passage" routes for travel between the West Bank and Gaza, and a one year deadline for completion of final status negotiations.

Israel retained extensive control over and placed restrictions on the freedom of movement of all West Bank and Gaza Strip Palestinians. For example, Israel had barred Palestinians living in the West Bank and Gaza Strip who lacked hard-to-obtain permits from entering or transiting through Israel or East Jerusalem since March 1993, and imposed closures and curfews on towns and villages under its control in the West Bank and Gaza. These policies obstructed Palestinian economic activity and access to health care, schools and universities, places of worship, and family members in other parts of the territories or in Israeli prisons. Despite Israeli claims that closure was a justified security measure, the arbitrary nature of the procedures and criteria for issuing permits and their indiscriminate imposition on an entire population made it an act of collective punishment.

Israel's expansion of settlements in Gaza and the West Bank (including East Jerusalem) that are illegal under the Fourth Geneva Convention (see Human Rights Watch World Report 1999) increased after the signing of the October 1998 Wye River Memorandum, and especially in the period around the May elections. According to the Israeli group Peace Now, between 1996 and July 1999 Jewish settlers erected forty-one new settlement outposts in the West Bank. Spending on settlement expansion continued under the new government. According to Peace Now, as of September 23 Housing Minister Yitzhak Levy had issued tenders for a total of 2,594 new buildings in West Bank settlements.

The demolition of Palestinian homes built without permits in Israeli occupied territories and in Israel also continued under the new government, despite Internal Security Minister Shlomo Ben Ami's statement in August that he was "opposed with every ounce of my being to the destruction of houses." According to the Society for the Protection of Human Rights and the Environment (LAW), as of September 20 there had been at least fifty house demolitions in the West Bank and Gaza, including seven since the Barak government came to power.

According to the Prisoners' Support Association (Addameer), after the September 9 release of 199 prisoners under the first phase of the Sharm al-Sheikh Memorandum Israel held approximately 1,800 Palestinians prisoners convicted of "security" offenses. A further 151 prisoners, including forty-two from Arab states, were released on October 15. Lawyers reported that Palestinian prisoners in Ashkelon prison were subjected to severe restrictions on family visits, and in June prisoners in the isolation wing went on hunger strike to protest the conditions there. Prisoners held a second hunger strike in August to protest the Israeli restrictions on the categories of prisoners released in September: among those excluded were prisoners from occupied East Jerusalem and Israel itself, members of Hamas and Islamic Jihad, and prisoners accused of killing or severely wounding Israelis.

The longest-serving administrative detainee held under military orders, Osama Barham, was released on July 18, just prior to the High Court hearing a petition challenging his detention. With the exception of sixteen days in 1994, Barham had been detained since November 1993. He was required to post a NIS 20,000 bond and report regularly to a police station as a condition of his release. As of September 23 Israel held twenty-nine administrative detainees under military orders. The Office of the Military

Advocate General refused Human Rights Watch's request to observe military court hearings on appeals against administrative detention orders in May.

In addition to those held under military orders, Israel continued to hold twenty-one Lebanese civilians hostage under Israeli civil law. On January 17 and May 26 an expanded nine judge panel of the High Court reviewed the 1997 ruling that Israel could administratively detain them as "bargaining chips," but had not ruled as of mid-October.

Torture by the General Security Service (GSS) was widespread and systematic, with one Jerusalem-based organization, the Public Committee against Torture in Israel (PCATI), reporting that by mid-September it had filed fifty-five petitions for injunctions against torture. Initial reports suggested that the use of torture declined or stopped in the days immediately after the September 6 High Court ruling that GSS officers were not authorized to use "physical means"-torture-during interrogations. However, the ruling stopped short of the absolute ban on torture and ill-treatment required by international law and left the door open for a torturer to escape punishment by invoking a "necessity" defense under article 34(11) of the Penal Law (1977), or for the Knesset to pass legislation legalizing torture or ill-treatment. On September 14 members of the Knesset submitted a bill authorizing the head of the GSS to order torture in cases where a suspect was believed to have information that could stop an imminent attack.

The High Court also relied on the "necessity" defense when it rejected a petition that sought to revoke the promotion of an Israeli Defense Force (IDF) commander and begin prosecution proceedings against him. The commander, identified only as Respondent No. 4, had shot a bound captive and then ordered another soldier to shoot him again during a 1993 commando raid in south Lebanon. The court based its ruling on the Military Attorney General finding that the commander was entitled to a defense of necessity because of his "responsibility for the safety of his soldiers," and the IDF Chief Commander's finding that Respondent No. 4 was "one of the best fighters of the IDF." The court ruled that "as judges we do not replace [the Chief Commander's] reasoning with our own," and ordered the petitioner to pay the respondents' legal expenses.

Israel continued to hold the bodies of `Adel and `Imad Awadallah, killed in suspicious circumstances by a police special forces unit in September 1998 (see Human Rights Watch World Report 1999). In March the Israel Information Center for Human Rights in the Occupied Territories (B'Tselem) and the Center for the Defense of the Individual (Hamoked) issued a report documenting at least twenty-two other Palestinians' corpses being held by Israel in so-called "cemeteries for enemy dead," where it said the bodies were buried "in a demeaning and shameful manner" with only minimal measures taken to ensure identification.

Palestinian Authority

Arbitrary detention without charge or trial, torture and ill-treatment during interrogation, grossly unfair trials, and restrictions on freedom of association and expression continued. Efforts by individuals, nongovernmental organizations (NGOs), and the Palestinian Legislative Council (PLC) to document and combat these violations were constrained by the lack of a legal framework clearly specifying the duties and responsibilities of the executive, judicial, and legislative branches of government. Palestinian Authority (P.A.) president Yasir Arafat's continued refusal to sign the Basic Law, as well as eight of the twenty-seven other laws passed by the PLC since 1996, further undermined efforts to institutionalize necessary safeguards and to limit serious executive branch abuses.

Palestinian security forces continued to carry out arbitrary arrests and detentions, holding detainees for years without charge and without access to lawyers or family visits, sometimes even after the P.A.'s attorney general or courts had ordered access to lawyers or releases. For example, Wa'il `Ali Faraj, arrested on April 25, 1996, remained in detention despite a February 20, 1999 High Court order for his release. Those released were sometimes immediately rearrested, as in the case of Dr. `Abd al-`Aziz al-Rantisi. Arrested on April 9, 1998 and ordered released on June 4, 1998, he was released on July 19, 1999-to attend his mother's funeral-but rearrested on August 8 after being quoted in al-Quds newspaper as saying his detention was due to P.A. security cooperation with Israel and the US. The court ordered his release on September 27, but as of mid-October he remained in custody.

Security forces sometimes detained or placed under house arrest the relatives of wanted individuals. For example, fifteen-year-old Bilal Yehya al-Ghoul was detained by the General Intelligence Service from 12 February to 2 March. The Gaza-based Palestinian Center for Human Rights (PCHR) reported that his arrest and torture was primarily to force his father, Yehya al-Ghoul, to surrender to police. The entire family had previously been placed under house arrest when the older al-Ghoul escaped from prison on December 11, 1998. Bilal was reportedly detained with adults and denied visits by his family and lawyer.

As of mid-October there had been one death in custody. Muhammad Ahmad Shrieteah died in hospital after being transferred from the Hebron police station in convulsions. According to LAW he had been detained without a warrant by Preventative Security Services on September 28.

Lawyers continued to report difficulty in seeing their clients, despite receiving permits from the attorney general or court orders allowing visits, with the denial of access sometimes having a punitive character. Beginning in May LAW, the Gaza office of Addameer, and PCHR were denied access to clients held in Gaza prisons controlled by the police department because of their reporting on violations of detainees' rights. According to LAW, Prison Service Director General Hamdi al-Rifi attributed the ban to a decision by Chief of Police Ghazi Al-Jabali. The Palestinian Bar Association held a one day strike on April 15 to protest interference in lawyers' fulfillment of their legal duties and the "lack of respect for the law, vacancy of the chief justice and attorney general's posts, failure to implement the Judiciary Law, and abandonment of the judiciary to suffer from a huge shortage of judges and administrative personnel."

Public protests against untried political detentions increased, with detainees holding lengthy hunger strikes and family members demonstrating to demand their trial or release. On January 13 the legislature passed a resolution calling for a prohibition on political detentions and the immediate release of political detainees. In late September Addameer estimated there to be 280 political prisoners in P.A. custody.

The judiciary continued to suffer from a severe lack of human and material resources, and trials fell far short of international fair trial standards. The June appointment of a chief justice and a civilian attorney general filled posts long vacant but had no effect on the State Security Courts (SSC) and military courts. President Arafat refused to sign and implement the Judicial Authority Law passed by the parliament in November 1998, leaving the West Bank and Gaza with separate judicial systems. In addition, Presidential Decree 28, issued September 19, gave the Gaza-based chief justice powers to discipline and transfer judges in both the West Bank and Gaza, although West Bank law and the Judicial Authority Law gave these powers to a Supreme Judicial Council. On October 11, a group of West Bank judges declared an open strike to protest transfers ordered by the chief justice.

Military and State Security Courts had the power to try civilians and denied almost all due process rights, including the right to appeal. Empowered to issue death sentences for a variety of vaguely worded crimes, they were responsible for the majority of the death sentences issued. Sentences were sometimes issued only hours after arrest, and often appeared to be influenced by political considerations, as in the case of Ahmed `Atiya Abu Mustafa, executed on February 26. Mustafa, who was arrested on February 21 on charges of raping a child, was sentenced to fifteen years hard labor for the rape, and under the 1979 Revolutionary Code was additionally sentenced to death for "inciting the public against the authorities," apparently in reference to public outrage and demands for his execution. On July 1 President Arafat expanded the jurisdiction of the State Security Courts by presidential decree to include "economic offenses."

Despite a proliferation of media outlets, press freedom remained restricted. Repeated interrogations and arrests of journalists, closures of media outlets, and the P.A.'s direct political or financial links to two of the three major daily newspapers ensured a climate of fear and self-censorship. Media oversight was split among a number of ministries and agencies with overlapping jurisdiction, often making it difficult to determine which, if any, agency had ordered a particular closure or investigation. Despite the 1998 court ordered reopening of the Islamist weekly al-Risala, police continued to harass its journalists and commentators, briefly detaining a journalist suspected of reporting on a sex scandal involving government officials on September 28 and on May 22 and 23 briefly detaining the publisher

and two editors after the newspaper reported on a case of alleged police torture. Television and radio stations were also subject to repeated closures; as of mid-October the Bethlehem-based al-Ru'ah TV, which was ordered closed on May 17 after broadcasting a play that security officials alleged incited prejudice between Christians and Muslims, had not been allowed to reopen. The station, along with several others, had been ordered closed twice in 1998 after airing footage of protests against the U.S. bombing of Iraq.

The Palestinian Legislative Council's efforts to retain its legislative role despite increasing encroachments by the executive branch suffered a further setback on August 12, when its speaker called an unannounced vote to amend the NGO law it passed on December 21, 1998. The vote came at the end of the last session of the council's term, after many members had left, and violated its bylaws, which gave the president a one month deadline to sign or submit amendments and required a absolute majority vote to pass a presidential amendment. President Arafat had not returned the law to the council until April, when he sought an amendment to make the Ministry of Interior, and not the Ministry of Justice, responsible for NGO oversight. The PLC had rejected this demand during the bill's original consideration and again by a vote of thirty-eight to twelve on May 25. The government responded with the creation of Ministry of NGO Affairs and a series of attacks against human rights NGOs and activists (see below).

Defending Human Rights

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Israel and the Occupied West Bank and Gaza Strip

Israel continued to permit human rights organizations to collect and disseminate information in the areas under its control, but closures often kept Palestinian human rights workers and lawyers, including those with Israeli citizenship or Jerusalem identity cards, from traveling freely within the West Bank, the Gaza Strip, and Israel. Palestinians who had previously detained were also refused access to prisons and detainees.

Sha'wan Jabarin, fieldwork coordinator for al-Haq, was subject to travel restrictions following his January 1998 release from administrative detention. A July 4 High Court ruling permitted him one exit and entry to attend a human rights training program abroad. The judge and the GSS told him informally that he could not travel via neighboring Arab countries, and that he would not be allowed to leave the country again.

Palestinian Authority

Palestinian NGOs, particularly human rights NGOs, were increasingly subject to police harassment and threats by P.A. officials, including major smear campaigns in the semi-official media. Many of the attacks were a direct outcome of the P.A.'s effort to override the provisions of the NGO law. For example, representatives of NGOs who refused to register their organizations with the Ministry of Interior reported that they were repeatedly called in for police interrogations and threatened with arrest under a 1909 Ottoman-era law prohibiting unregistered associations.

Other actions appeared to be aimed at silencing NGOs and activists who criticized P.A. abuses. In an August 28 letter to PCHR director Raji Sourani, Chief of Police Ghazi al-Jabali said "words are not sufficient, especially with those who sold their consciences and their pens to the interests of those who want us to have neither a state or law." Al-Jabali was responding to PCHR criticisms of gross fair trial violations in the trial of Iman Mohammed Abu Sa`ada, who was accused of killing a police officer. Abu Sa`ada, a civilian, was sentenced to death after a six hour State Security Court hearing. The letter was copied to the ministers of justice and NGO affairs, and to all regional police chiefs and stations "to acquaint them with the position of Raji Sourani and human rights organizations."

In June and July the directors of LAW and PCHR, and the secretary general of PICCR filed separate complaints asking for the prosecution under the press law of journalists and government officials who

had made slanderous statements about them and their organizations during the June government campaign against NGOs. Individuals named in the complaints included Khalil al-Zaben, coordinator of the government-appointed NGO council, and P.A. Minister Nabil Amer, the editor of al-Hayat al-Jadida newspaper.

The Role of the International Community

United Nations

Israel and the Occupied West Bank and Gaza Strip

The Committee on Economic, Social and Cultural Rights reviewed Israel's first periodic report on its implementation of the International Covenant on Economic, Social and Cultural Rights (ICESCR) on November 17 and 18, 1998. The committee expressed concern over twenty-three different types of violations and restrictions on the enjoyment of economic, social, and cultural rights in Israel and the Occupied Palestinian Territories, including discrimination against non-Jews, expropriation of Palestinian land and resources to expand exclusively Jewish settlements, the practice of house demolitions and restrictions on family reunification and residency rights, and the policy of closure. In its recommendations it urged Israel to review reentry policies for Palestinians "with a view to bringing such policies level with the Law of Return as applied to Jews"; to "recognize existing Arab Bedouin villages, the land rights of their inhabitants and their right to basic services, including water"; and "as a matter of the highest priority, to undertake to ensure safe passage at checkpoints for Palestinian medical staff and people seeking treatment, the unhampered flow of essential foodstuffs and supplies, the safe conduct of students and teachers to and from schools, and the reunification of families separated by closures."

In an unprecedented move, the High Contracting Parties (HCP) of the Fourth Geneva Convention (relative to the Protection of Civilian Persons in Time of War) met on July 15 to discuss "measures to enforce the Convention in the Occupied Palestinian Territory, including Jerusalem, and to ensure respect thereof in accordance with common article 1."

Israel continued to refuse to cooperate with Hannu Halinen, U.N. special rapporteur on the situation of human rights in the Palestinian territories occupied since 1967. In a letter to Halinen, Israel's ambassador in Geneva David Peleg said Israel would continue to refuse cooperation until the special rapporteur's mandate was revised to include both Israeli and P.A. abuses, be limited in time, and not start from an assumption of Israeli violations. Halinen, who submitted his fourth report to the Commission on Human Rights on January 20, had previously asked for similar changes in his mandate, and included information on P.A. abuses in his reports.

Palestinian Authority

On September 21, the U.N. secretary general appointed Terje Roed-Larsen as special coordinator for the Middle East peace process and his personal representative to the PLO and the P.A., effective October 1. The position included responsibilities previously in the mandate of the U.N. special coordinator for the occupied territories (UNSCO), a post Roed-Larsen held from 1994 to 1996.

In his January 20 report to the Commission on Human Rights, U.N. Special Rapporteur Halinen called on the P.A. to try or release administrative detainees, prohibit torture, and guarantee judicial independence, and undertake "determined legislative efforts" to enforce the rights of women and children. P.A. ambassador to the U.N. Nabil Ramlawi wrote a formal protest to the High Commissioner for Human Rights and the chairperson of the commission on April 12. He criticized Halinen for stepping outside his mandate and said that P.A. cooperation would only continue if Halinen remained within his existing mandate.

European Union

The European Union (E.U.) continued to be the largest single donor to the P.A. In 1999 it expanded its involvement in Israeli and Palestinian affairs, although its efforts remained focused on facilitating progress in advancing political negotiations between Israel and the PLO. The rotating E.U. presidency

made multiple visits to Israel and the P.A. territories, in an apparent attempt to gain a larger role for the E.U. German Foreign Minister Joschka Fischer visited Israel and the P.A. in February and July, and Finnish Foreign Minister Tarja Halonen visited in August. The February visit came on the heels of a January 25 statement by the Council of Ministers that "deplored the continued suspension by the Israeli government of the implementation" of the Wye River Memorandum, which it said was "in contravention of both the spirit and the letter of the memorandum."

On March 3 the European Community and Israel signed a cooperation agreement allowing Israel to participate in the Fifth Framework research and development program. The decision reversed a December 1998 decision by the Council of Ministers to exclude Israel from a Euro 14.96 billion program because of its failure to implement the October Wye River Memorandum.

In conjunction with the signing of the Sharm al-Sheikh Memorandum E.U. President Halonen provided President Arafat with a letter of assurance that reaffirmed E.U. support for Palestinian self-determination and expressed the E.U.'s "conviction" that the memorandum would be implemented according to its time table, "regardless of developments in negotiations related to permanent status issues." Halonen also said the E.U. believed that final status negotiations could be concluded within the one year target period, called on both parties to "refrain from activities which prejudice the outcome of the final status negotiations and from any activity contrary to international law, including all settlement activity, and to fight incitement and violence," and promised the E.U.'s "full political commitment to facilitate the implementation of Sharm e-Sheikh Memorandum along the lines expressed in this letter." The language echoed statements made at the April Euro-Mediterranean Conference of Foreign Ministers and the March European Council meeting in Berlin.

As of October, France and Belgium had yet to ratify the Euro-Mediterranean Association Agreement between the E.U. and Israel.

United States

United States aid to Israel and the P.A. fell slightly in 1998/99, but Israel remained the largest recipient of U.S. bilateral aid. The U.S. held high level meetings with both Israeli and Palestinian officials throughout the year but was less directly involved in the Israel-PLO peace negotiations after Prime Minister Barak's election. While most meetings were concerned with furthering the negotiations and rarely addressed specific human rights violations, in February Robert Seiple, the U.S. special representative for international religious freedom, met with Israel's deputy minister of religious affairs, and with the P.A. President Arafat to discuss concerns about religious freedom under both Israel and the P.A.

Despite frequent expressions of concern over Israeli settlement expansion, U.S. officials strongly opposed efforts to convene the July 15 meeting of the Geneva Conventions High Contracting Parties. Assistant Secretary of State C. David Welch testified before the House International Relations Committee on July 14 that President Clinton had personally conveyed U.S. objections to the presidents of Switzerland and France, and on May 23, Vice-President Gore told the annual meeting of the American-Israel Public Affairs Committee that "we will work diligently to halt the meeting....America will boycott it, and we will urge others to do the same." Statements by Assistant Secretary of State Indyk made clear that the U.S. considered enforcement of the treaty as secondary to finalizing peace negotiations, saying "[t]his meeting will not contribute to the peace process," and comparing it to "unilateral steps-such as unilateral declaration of statehood or provocative settlement activity-that could prejudice the outcome of permanent status negotiations," which the U.S. so often criticized.

Secretary of State Madeleine Albright facilitated last minute negotiations between Israel and the PLO leading to the September 4 signing of the Sharm al-Sheikh Memorandum. Albright also provided President Arafat with a letter of assurance similar to that provided by the E.U.

On June 18 President Clinton invoked a waiver to postpone moving the U.S. embassy from Tel Aviv to Jerusalem. The Jerusalem Embassy Act of 1995 had set a May 31 deadline for the move, but allowed a six months waiver to "protect the national security interests of the United States."

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